

GUARDIANTEXT THREAT INTELLIGENCE REPORT

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Threat Summary

Threat Level: DANGEROUS

Confidence: 88.0%

Risk Score: 98.8 / 100

Summary: Detected threat indicators: romance_scam

Original Message

Hi Mum, My phone just broke. So you can delete that number and save this one 20:06 Who are you ,.50 The oldest one xx 5.44 I have no children

Threat DNA Patterns

- romance_scam (90%) — Building fake emotional connection to extract money

Analysis Breakdown

- romance_scam [HIGH] — Detected romance_scam indicator: 'delete that number and save this one'
- romance_scam [HIGH] — Detected romance_scam indicator: 'phone just broke'
- romance_scam [HIGH] — Detected romance_scam indicator: 'hi mum'
- romance_scam [HIGH] — Detected mum-dad / SIM-swap scam — impersonating a family member to steal contact details or money.
- romance_scam [HIGH] — Detected SIM-swap / number-replacement scam tactic.

Legal References

- IPC 420 — Cheating / IPC 66D IT Act — Fraud

Recommended Action Plan

- Block the sender immediately
- Document and screenshot all evidence
- Alert a trusted contact or family member
- File a police complaint — IPC 354D / 506 may apply
- Contact NCW Helpline: 7827170170
- Seek legal advice urgently

Support Guidance

Hey, I want you to know — what you're experiencing is NOT okay, and you are NOT overreacting. This message shows serious warning signs. Your safety matters most right now. Please reach out to someone

you trust, or call the NCW helpline at 7827170170. You deserve to be safe.

Appendix: IPC Section 354D (Stalking)

1. Legal Provision

Stalking is recognized as a criminal offense under Section 354D of the Indian Penal Code (IPC), introduced by the Criminal Law (Amendment) Act, 2013.

2. Key Elements Of IPC Section 354D: Stalking

2.1. Definition Of Stalking

Any man who follows a woman and contacts, or attempts to contact such woman to foster personal interaction repeatedly despite a clear indication of disinterest by such woman; or monitors the use by a woman of the internet, email or any other form of electronic communication, commits the offence of stalking.

2.2. Exceptions To Stalking

Exceptions include actions taken for the purpose of preventing or detecting crime by a person authorized by the State, actions pursued under any law or to comply with any condition or requirement imposed by any person under any law, or where conduct was reasonable and justified in the particular circumstances.

2.3. Punishments For Stalking

First conviction: Imprisonment up to 3 years and a fine. Second or subsequent conviction: Imprisonment up to 5 years and a fine. The offense is cognizable and bailable for the first offense, and non-bailable for subsequent offenses.

3. Societal Context Of Stalking

3.1. Impact On Victims

Victims often experience severe psychological distress, fear, anxiety, depression, and restricted freedom of movement. It significantly impacts their personal and professional lives.

3.2. Role Of Technology

Cyberstalking has exacerbated the issue, allowing perpetrators to harass victims anonymously and persistently across digital platforms, violating privacy on a massive scale.

4. Key Details: IPC Section 354D

The section specifically protects women from men. It covers both physical following and digital monitoring (cyberstalking).

5. Case Laws

5.1. State vs . Ashok Kumar

Highlighted the necessity of proving the 'repeated' nature of contact and the clear disinterest shown by the victim to establish stalking.

5.2. Singaraju Somasekhar, vs The State Of Telangana

Emphasized that electronic monitoring and cyberstalking are strictly punishable under 354D, acknowledging the severe mental trauma inflicted through digital mediums.

6. Challenges In Implementation

Challenges include underreporting due to societal stigma, difficulty in gathering digital evidence, lack of awareness, and the bailable nature of the first offense which may embolden offenders.

7. Conclusion

Section 354D is a crucial legal framework protecting women from persistent harassment and privacy violations, recognizing both physical and digital forms of stalking as severe offenses.

8. FAQs

8.1. 1. What are the penalties for stalking?

Up to 3 years imprisonment and fine for first offense; up to 5 years and fine for subsequent offenses.

8.2. 2. How does technology impact stalking cases?

It enables cyberstalking (monitoring emails, social media), complicating evidence collection but explicitly covered under the IPC.

8.3. 3. What challenges hinder the enforcement of Section 354D?

Social stigma, fear of retaliation, evidence preservation issues, and systemic delays in cyber forensics.

9. References

- Indian Penal Code, 1860 (Section 354D)
- Information Technology Act, 2000